

Amendment No. 1 to SB2224

Bailey
Signature of Sponsor

AMEND Senate Bill No. 2224*

House Bill No. 2530

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 4-29-248(a), is amended by deleting subdivision (43).

SECTION 2. Tennessee Code Annotated, Section 20-9-606(a), is amended by deleting the subsection and substituting:

(a)

(1) All complaints must be in writing, signed by the person making the complaint, and addressed to the commissioner. All complaints must contain the name and address of the person against whom the complaint is brought and a description of the conduct giving rise to the complaint.

(2) Complaints must be submitted within ninety (90) days of the conduct complained about, and a copy must be provided to the licensed court reporter. The copy may be sent by electronic mail or by such other means of delivery to ensure that the licensed court reporter charged in the complaint receives actual notice.

(3) After investigation of the charges, the commissioner shall determine if a hearing is warranted, dismiss the complaint, or take other action the commissioner deems appropriate. Any hearing deemed warranted must be conducted in accordance with the contested cases provisions of the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

SECTION 3. Tennessee Code Annotated, Section 55-17-103(b), is amended by deleting the subsection and substituting:

(b) Each of the industry members of the commission may be appointed by the governor from the list of names submitted by interested automotive groups, including, but not limited to, the Tennessee Automotive Association. Each of the members of the commission must, at the time of appointment, be a resident of this state and be of good moral character. Industry members must have been actually engaged in the sale of motor vehicles in this state for at least five (5) consecutive years preceding the appointment, and each must have the necessary qualifications for the applicable license under this part, and be the holder of such license at all times while a member of the commission.

SECTION 4. Tennessee Code Annotated, Section 55-17-106, is amended by deleting subsection (b).

SECTION 5. Tennessee Code Annotated, Section 62-2-101, is amended by deleting the section and substituting:

In order to safeguard life, health, and property and to promote public welfare, by requiring that only properly qualified persons may practice architecture, engineering, land surveying, and landscape architecture, or use the title "registered interior designer" in this state, any person practicing architecture, engineering, land surveying, or landscape architecture or using the title "registered interior designer" must be registered as provided in this chapter and chapter 18, part 1 of this title, as appropriate, and it is unlawful for a person to practice or offer to practice architecture, engineering, land surveying, or landscape architecture, or use the title "registered interior designer" unless the person has been duly registered under this chapter and chapter 18, part 1 of this title, as appropriate, except as otherwise provided.

SECTION 6. Tennessee Code Annotated, Section 62-2-105, is amended by deleting the section and substituting:

(a)

(1) A person shall not:

(A) Present or attempt to file as the person's own the certificate of registration of another;

(B) Give forged or willfully false evidence of any kind to the state board of examiners for architects, engineers, and land surveyors or any member of the board for the purpose of obtaining a certificate;

(C) Falsely impersonate any other practitioner; or

(D) Use or attempt to use an expired or revoked certificate of registration.

(2) A violation of subdivision (a)(1) is a Class B misdemeanor.

(b)

(1) A person shall not practice or offer to practice engineering, architecture, land surveying, landscape architecture, or use the title "registered interior designer" in this state in violation of this chapter.

(2) A violation of subdivision (b)(1) is a Class B misdemeanor.

(3) Each day's violation of subdivision (b)(1) is a separate offense.

(c) A person is construed to practice or offer to practice engineering, architecture, land surveying, or landscape architecture who, by verbal claim, sign, advertisement, letterhead, card, or in any other way, represents that person to be an architect, engineer, land surveyor, or landscape architect, with or without qualifying adjective, or through the use of some other title implies that the person is an architect, engineer, land surveyor, or landscape architect.

(d) The members of the board shall report any violations of this chapter to the proper authorities.

SECTION 7. Tennessee Code Annotated, Section 62-2-106, is amended by deleting the section and substituting:

(a) The state board of examiners for architects, engineers, and land surveyors shall inquire into the identity of a person claiming to be an architect, engineer, land surveyor, landscape architect or registered interior designer and to prosecute any person violating this chapter.

(b) The board may, when it deems appropriate, seek civil remedies at law or equity to restrain or enjoin any unauthorized practice or other violation of this chapter or chapter 18, part 1 of this title.

SECTION 8. Tennessee Code Annotated, Section 62-2-201, is amended by deleting the section and substituting:

(a)

(1) There is created a state board of examiners for architects, engineers, and land surveyors called the board in this part, parts 1 and 3-8 of this chapter, and chapter 18, part 1 of this title, and composed of fifteen (15) members.

(2)

(A) The governor shall appoint eleven (11) professional members to the board as follows:

(i) Three (3) of whom are registered architects who may be appointed from lists of qualified persons submitted by interested architect groups, including, but not limited to, the representative professional architects of this state;

(ii) Three (3) of whom are registered engineers who may be appointed from lists of qualified persons submitted by interested engineering groups, including, but not limited to, the representative professional engineering society of this state;

(iii) Three (3) of whom are registered land surveyors who may be appointed from lists of qualified persons submitted by

interested land surveyor groups, including, but not limited to, the Tennessee association of professional surveyors;

(iv) One (1) of whom is a registered landscape architect who may be appointed from lists of qualified persons submitted by interested landscape architect groups, including, but not limited to, the representative professional landscape architecture society of this state; and

(v) One (1) of whom is a registered interior designer who may be appointed from lists of qualified persons submitted by interested interior design groups including, but not limited to, the representative professional interior design society of the state.

(B) The governor shall consult with interested statewide architect, engineering, land surveying, landscape architect, and interior design groups, including, but not limited to, the professional societies listed in subdivision (a)(2)(A) to determine qualified persons to fill the positions.

(3) The governor shall appoint one (1) public member to the board who is not engaged in the practice of architecture, engineering, land surveying, landscape architecture, or interior designing, and who is a resident of this state and possesses good moral character. Except as provided in §§ 62-2-302 and 62-18-112, the member appointed pursuant to this subdivision (a)(3) is a participating member of the board in all board matters.

(4)

(A) The governor shall appoint three (3) registered engineers as associate members of the board, one (1) from each grand division of the state, who may be appointed by the governor from lists of qualified persons submitted by interested engineering groups, including, but not limited to, the representative professional engineering society of this

state. The governor shall consult with such interested engineering groups to determine qualified persons to fill the positions.

(B) Associate engineer board members appointed under this subdivision (a)(4) are subject to § 62-2-202.

(C)

(i) Associate engineer members appointed under this subdivision (a)(4) shall assist the board with routine matters and responsibilities as requested by the board. Associate engineer members shall attend board meetings, committee meetings, and other board functions only as required by the board. The associate engineer members have no voting privileges and are not to be considered as members for quorum or election purposes.

(ii) Associate engineer members shall render technical assistance to the board and staff as authorized by the board.

(5)

(A) The governor shall appoint members under subdivisions (a)(2) and (3) to staggered terms as follows:

(i) One (1) registered architect member, one (1) registered engineer member, one (1) registered landscape architect member, and one (1) land surveyor member, each from the eastern grand division for an initial term of two (2) years;

(ii) One (1) registered architect member, one (1) registered engineer member, and one (1) land surveyor member, each from the middle grand division for an initial term of three (3) years;

(iii) One (1) registered architect member, one (1) registered engineer member, and one (1) land surveyor member, each from the west grand division for a term of four (4) years; and

(iv) The one (1) public member, one (1) interior designer member, and one (1) landscape architect member may be appointed from any grand division in the state.

(B) The governor shall appoint associate engineer members under subdivision (a)(4) to staggered terms as follows:

(i) The member appointed from the eastern grand division for a term of two (2) years;

(ii) The member appointed from the middle grand division for a term of three (3) years; and

(iii) The member appointed from the western grand division for a term of four (4) years.

(C) All subsequent appointments are for four-year terms that begin on July 1 and end on June 30.

(D) The successor to any architect, engineer, or land surveyor, must be appointed from the same grand division as such member.

(6) Notwithstanding the appointment of associate engineer board members in subdivision (a)(4), appointments to the board must be in such manner that the terms of members in the same profession expire at different times.

(7) Terms of office begin on July 1 of the year of appointment, except that successors may, at any time, qualify and serve for the remainder of the given term.

(8) The members serving on the board of architects and engineers as of June 30, 2026 shall serve the remainder of their terms.

(9) In the event of a vacancy on the board for any reason and the governor failing to appoint a successor within three (3) months after the vacancy occurs, the board may fill the vacancy from the lists of qualified persons submitted by the interested groups, including, but not limited to, the respective societies, until the governor makes an appointment as provided in subdivisions (a)(2)-(4).

SECTION 9. Tennessee Code Annotated, Section 62-2-202(a), is amended by deleting the subsection and substituting:

(a) Each of the members of the board appointed under § 62-2-201(a) must possess at least ten (10) years' experience in their respective practices as either a registered architect, a registered engineer, a registered interior designer, a registered land surveyor, or a registered landscape architect, as applicable, with no record of any formal disciplinary action. Such members must each have been in responsible charge of work for at least five (5) years, and must each have demonstrated an interest in improving the profession by their involvement in a statewide association directly related to their profession for at least five (5) years. Each member must be a citizen of the United States and must have been a resident of this state for five (5) years at the time of their appointment.

SECTION 10. Tennessee Code Annotated, Section 62-2-203, is amended by deleting the section and substituting:

(a) Each member appointed under § 62-2-201(a) must receive a letter of appointment from the governor, and a person is not eligible for appointment who does not, at such the time, hold an unexpired certificate to practice architecture, engineering, land surveying, or landscape architecture, or certificate of registration to use the title "registered interior designer", issued under this chapter or other applicable law. Before beginning a term of office, each appointed member must file the oath of office with the secretary of state.

(b) The board or any committee of the board shall utilize the services of an assistant attorney general in connection with the affairs of the board, and the board shall compel the attendance of witnesses on behalf of the state or any party having issue before the board, shall administer oaths, and shall take testimony concerning all matters within its jurisdiction.

(c) The board shall adopt and have an official seal, which must be affixed to all certificates of registration granted, and shall make all bylaws and rules consistent with the law.

(d) The board may establish continuing professional education requirements for architects, engineers, land surveyors, landscape architects, and registered interior designers. Any rules promulgated relative to such continuing professional education requirements under this subsection (d) must be promulgated in compliance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

SECTION 11. Tennessee Code Annotated, Section 62-2-204(c), is amended by deleting the subsection and substituting:

(c) A quorum of the board must consist of at least seven (7) members. For the purpose of formal disciplinary matters involving an architect, engineer, land surveyor, registered interior designer, or landscape architect, at least one (1) board member from the respective profession must be present as part of the seven-member quorum.

SECTION 12. Tennessee Code Annotated, Section 62-2-206, is amended by deleting "three (3) board members" and substituting "four (4) board members".

SECTION 13. Tennessee Code Annotated, Title 62, Chapter 2, Part 2, is amended by adding the following as a new section:

62-2-208. Funds.

(a) All moneys collected pursuant to this chapter and chapter 18, part 1 of this title must be deposited in the state treasury in a separate account for the board and for

the administration of this chapter and chapter 18, part 1, which is governed by § 56-1-310.

(b) Notwithstanding subsection (a), disbursements from the account may be made for the purpose of defraying expenses incurred in the implementation and enforcement of this chapter and chapter 18, part 1.

SECTION 14. Tennessee Code Annotated, Section 62-2-301, is amended by deleting the section and substituting:

(a) The board shall consider an application for a certificate of registration that is submitted on a form prescribed by the board and accompanied by the fee prescribed by the board. The board shall issue a certificate of registration as an architect, engineer, land surveyor, registered interior designer, or landscape architect to an applicant who:

(1) Submits evidence satisfactory to the board that the applicant is qualified to practice architecture, engineering, land surveying, or landscape architecture, or to use the title registered interior designer;

(2) Speaks and writes English; and

(3) Is of good character and repute.

(b) The board shall not grant a person a certificate of registration as an architect, engineer, land surveyor, registered interior designer, or landscape architect unless the person:

(1) Submits a separate application for each profession;

(2) Pays a separate original application fee and annual renewal fee for each profession; and

(3) Is qualified for registration in each profession.

SECTION 15. Tennessee Code Annotated, Section 62-2-302, is amended by deleting the section and substituting:

(a)

(1) In determining the qualifications of applicants for registration as architects, the executive director of the board may assign the application to two (2) or more of the architect members to review individually. If two (2) reviewing members approve the application and full board review is not otherwise required by this subdivision (a)(1), then the application is approved. If any reviewing member requests full board review, or if the executive director determines that the level of complexity of the application needs full board review, then the application must be reviewed at a board meeting and approval only requires the affirmative vote of a majority of the architect members.

(2) In determining the qualifications of applicants for registration as engineers, the executive director of the board may assign the application to two (2) or more of the engineer members, or associate engineer members, to review individually. If two (2) reviewing members approve the application and full board review is not otherwise required by this subdivision (a)(2), then the application is approved. If any reviewing member requests full board review, or if the executive director determines that the level of complexity of the application requires a full review, then the application must be reviewed at a board meeting and approval only requires the affirmative vote of a majority of the engineer members.

(3) In determining the qualifications of applicants for registration as a landscape architect, the executive director of the board may assign the application to the one (1) landscape architect board member and at least one (1) architect or one (1) engineer board member. If the two (2) reviewing members approve the application and full board review is not otherwise required by this subdivision (a)(3), then the application is approved. If any reviewing member requests full board review, or if the executive director determines that the level of complexity of the application requires a full board review, then the application must be reviewed at a board meeting and approval only requires the affirmative

vote from the one (1) landscape architect member and a majority of the voting architect and engineer members; provided, however, that at least one (1) architect or one (1) engineer member vote is required for approval.

(4) In determining the qualifications of applicants for registration as registered interior designers, the registered interior designer board member and one (1) architect, engineer, or landscape architect board member is only required.

(b)

(1) Applicants for registration as architects must only be examined by architect members of the board; applicants for registration as engineers must only be examined by the engineer members of the board; and applicants for registration as land surveyors must only be examined by land surveying members of the board.

(2) Applicants for registration as landscape architects must be examined by the landscape architect member and either one (1) architect or one (1) engineer member of the board.

(3) Applicants for registration as registered interior designers must be examined by the registered interior designer member and either one (1) architect, one (1) engineer, or one (1) landscape architect member of the board.

(c) If the board denies issuance of a certificate to an applicant, then a refund of any part of the application fee must not be returned to the applicant.

(d) For purposes of this section, the public member of the board appointed under the authority of § 62-2-201(b) is not a voting member of the board.

SECTION 16. Tennessee Code Annotated, Section 62-2-304(a), is amended by deleting "registered interior designer" and substituting "land surveyor, registered interior designer,".

SECTION 17. Tennessee Code Annotated, Section 62-2-307, is amended by deleting the section and substituting:

(a) Certificates of registration expire two (2) years following the date of issuance or renewal and are invalid on that date unless renewed.

(b) The board shall notify every person registered under this chapter of the date of the expiration of that person's certificate and the amount of the fee required for its two-year renewal. The notice must be sent at least one (1) month in advance of the date of the expiration of the certificate. Notice may be sent by electronic mail if the licensee maintains an electronic mailing address on file with the board.

(c) Renewal may be affected at any time during the thirty (30) days preceding the certificate expiration date by the payment of the renewal fee determined by and payable to the board.

(d) Certificates of registration are subject to late renewal for six (6) months following their expiration date by payment of the renewal fee plus a penalty as set by the board for each month or fraction of a month that elapses before payment is tendered.

(e) A person who renews a certificate later than six (6) months after its expiration date must reapply for certification. The board may, in its discretion, waive any further examination of the applicant and any further education and experience beyond that obtained at the time of the applicant's original registration in this state.

(f) Notwithstanding this chapter to the contrary, the board may establish, by rule, procedures and criteria pursuant to which persons who are retired may continue to use the titles of "architect", "engineer", "landscape architect", or "registered interior designer" without the payment of a registration renewal fee.

SECTION 18. Tennessee Code Annotated, Section 62-2-308, is amended by deleting the section and substituting:

(a)

(1) The board may refuse to issue or renew, and may revoke or suspend, the certificate of registration of any architect, engineer, land surveyor, landscape architect, or registered interior designer registered under this chapter who is convicted, placed on pretrial probation, found liable, or found to have committed the following:

(A) Fraud or deceit in obtaining a certificate of registration;

(B) Gross negligence, incompetency, or misconduct in the practice of architecture, engineering, land surveying, landscape architecture, or in the use of the title "registered interior designer";

(C) Failure to obtain, keep, and utilize the registrant's seal as provided in this chapter;

(D) Breach of contract for professional services as ruled by a court of competent jurisdiction;

(E) Any violation of the rules adopted by the board;

(F) An act that resulted in the suspension or revocation of the person's right to practice architecture, engineering, landscape architecture, or use the title "registered interior designer" suspended or revoked by another state or national registration board; or

(G) Any felony as ruled by a court of competent jurisdiction.

However, an action taken under this subdivision (a)(1)(G) is subject to the applicable provisions of the Fresh Start Act, compiled in chapter 76, part 1 of this title.

(2) A person may prefer charges in writing to the board against an architect, engineer, landscape architect, land surveyor, or registered interior designer registered under this chapter or chapter 18 part 1 of this title, on any of the grounds listed in subdivision (a)(1).

(3) The affirmative vote of seven (7) or more members of the board is required to revoke or suspend the certificate of registration of an architect, engineer, landscape architect, or registered interior designer registered under this chapter, or of a land surveyor registered under chapter 18, part 1 of this title.

(b) The board may reissue a certificate of registration to a person whose certificate has been revoked; provided, that seven (7) or more members of the board vote in favor of reissuance for reasons the board may deem sufficient.

(c) The board members are officers of the state in carrying out the duties imposed by this chapter and chapter 18 part 1 of this title, and as such have the full measure of governmental immunity provided by law.

SECTION 19. Tennessee Code Annotated, Section 62-4-102(a)(1)(C), is amended by deleting "applying makeup,".

SECTION 20. Tennessee Code Annotated, Section 62-4-102(a), is amended by adding the following as a new subdivision:

() "Makeup application services":

(A) Means the application of a cosmetic to enhance the appearance of the face or skin, including powder, foundation, rouge, eyeshadow, eyeliner, mascara, and lipstick, and including makeup applied using an airbrush;

(B) Includes incidental and necessary cleansing, moisturizing, and priming of the face when performed solely in connection with the application or removal of makeup;

(C) Does not constitute aesthetics, cosmetology, esthetics, or any other practice regulated under this chapter; and

(D) Does not include:

(i) Facials or other skin care services;

(ii) Removal of superfluous hair by any method;

(iii) Tattooing, micropigmentation, or the application of permanent or semipermanent makeup; or

(iv) Application of artificial eyelashes;

SECTION 21. Tennessee Code Annotated, Section 62-4-109(a), is amended by adding the following as a new subdivision:

() Any person whose occupation or practice is confined solely to makeup application services.

SECTION 22. Tennessee Code Annotated, Section 62-4-139, is amended by deleting the section and substituting:

The board shall provide written notice of the requirements of §§ 62-4-110(f), 62-4-118(m), 62-4-120(i), and 62-4-120(k) to all applicable licensees and schools under the jurisdiction of the board through the board's website, e-blasts, print mailings, electronic mail, license renewal communications, or any other reasonable methods to provide notice of these requirements, as determined by the board.

SECTION 23. Tennessee Code Annotated, Section 62-6-102, is amended by adding the following as a new, appropriately designated subdivision:

() "Total cost" means the aggregate monetary value of all labor, materials, equipment, subcontracted work, overhead, profit, and any other expense associated with a construction project or undertaking, regardless of whether such amounts are paid by the owner, contractor, subcontractor, or any other person, and regardless of whether the work is performed under one (1) or multiple contracts;

SECTION 24. Tennessee Code Annotated, Section 62-6-111(b), is amended by adding the following as a new subdivision:

(5) In lieu of providing a financial statement, an applicant may obtain a surety bond in an amount that is equal to at least fifty percent (50%) of the monetary limitation that is requested by the applicant. The bond must be continuous in form and must be maintained in effect for as long as the applicant maintains a license or until the applicant

provides a financial statement that meets the requirements of subdivisions (b)(3) or (b)(4). The applicant shall submit proof of the surety bond with the application. The bond is for the benefit of a person who is damaged by an act or omission of the applicant constituting a breach of a construction contract or by an unlawful act or omission of the applicant in the performance of contracting. A person so damaged may sue directly on the bond without assignment thereof. The bond must not require any surety to be responsible for the completion of a construction contract entered into by the principal on the bond. The liability of the surety under any bond must not exceed in the aggregate the amount of the bond. If the bond ceases to be in effect, then the contractor's license becomes invalid.

SECTION 25. Tennessee Code Annotated, Section 62-6-111(k), is amended by adding the following language as a new subdivision:

(5) In lieu of providing a financial statement for the request in a change of monetary limitation as required by subdivisions (k)(1) and (2), an applicant may provide a surety bond that meets the requirements of subdivision (b)(5).

SECTION 26. Tennessee Code Annotated, Section 62-6-116(b), is amended by deleting the subsection and substituting:

(b) Renewal notices must be sent ninety (90) days prior to the expiration date of the license. Renewal notices may be sent by electronic mail if the licensee maintains an electronic mailing address on file with the board.

SECTION 27. Tennessee Code Annotated, Section 62-6-116(c), is amended by adding the following language immediately following the last sentence:

In lieu of submitting a financial statement, the renewal applicant may submit proof of a surety bond that meets the requirements of § 62-6-111(b)(5) with the renewal application.

SECTION 28. Tennessee Code Annotated, Section 62-6-116(d), is amended by adding the following language immediately following the last sentence:

If the renewal applicant submits proof of a surety bond with the renewal application or maintains an effective surety bond on file with the board that meets the requirements of § 62-6-111(b)(5), then the renewal applicant is not required to provide a financial statement.

SECTION 29. Tennessee Code Annotated, Section 62-6-116(e), is amended by deleting the subsection and substituting:

(e) The executive director shall notify every person licensed under this part of the date of expiration of this certificate of license and the amount of the fee required for its two-year renewal. Notice may be accomplished by electronic mail or by any other reasonable method determined by the board, in accordance with this section.

SECTION 30. Tennessee Code Annotated, Section 62-6-124, is amended by adding the following as a new subsection:

(c) The board may provide a bond, surety, or personal guaranty that is submitted to the board to a person requesting a copy of such document. The board must provide any financial records submitted by an applicant or licensee to any law enforcement agency, state or federal agency, or any other governmental agency having jurisdiction over an applicant or licensee upon request from such agency or by the board's own recommendation.

SECTION 31. Tennessee Code Annotated, Section 62-6-131(c), is amended by deleting the subsection and substituting:

(c) The board shall prescribe fees for the issuance and renewal of licenses of limited licensed electricians.

SECTION 32. Tennessee Code Annotated, Section 62-6-131, is amended by adding the following as a new subsection:

(e) Effective July 1, 2026, all funds held by the state treasurer in the limited licensed electricians fund must be deposited in the fund for the state board for licensing contractors pursuant to § 56-1-310(a), to be used for any lawful purpose of the board,

and the separate limited licensed electricians fund no longer exists upon such transfer of funds. All fees, penalties, and any other payments received regarding limited licensed electricians must be deposited in the fund for the board and may be used for any lawful purpose of the board.

SECTION 33. Tennessee Code Annotated, Section 62-6-408(a), is amended by deleting the subsection and substituting:

(a) The board shall prescribe fees for the application, examination, issuance, and renewal of licenses of limited licensed plumbers.

SECTION 34. Tennessee Code Annotated, Section 62-6-408, is amended by adding the following as a new subsection:

(c) Effective July 1, 2026, all funds held by the state treasurer in the limited licensed plumbers fund must be deposited in the fund for the state board for licensing contractors pursuant to § 56-1-310(a), to be used for any lawful purpose of the board, and the separate limited licensed plumbers fund no long exists upon such transfer of funds. All fees, penalties, and any other payments received regarding limited licensed plumbers must be deposited in the fund for the board and may be used for any lawful purpose of the board.

SECTION 35. Tennessee Code Annotated, Section 62-6-411, is amended by deleting subsections (b) and (c) and substituting:

(b) The board shall notify every person licensed under this part of the date of expiration of the license and the amount of fee required for its renewal. Renewal notices must be sent ninety (90) days prior to the expiration date of the license. Renewal notices may be sent by electronic mail if the licensee maintains an electronic mailing address on file with the board. The renewal notice must be accompanied by a renewal fee.

SECTION 36. Tennessee Code Annotated, Section 62-13-104(b)(8)(B), is amended by deleting the subdivision and substituting:

(B) All notices and answers required or authorized to be made or filed under this subsection (b) may be served or filed personally, by electronic mail if the licensee maintains an electronic mailing address on file with the commission, or by registered mail to the last known business address of the addressee. If served personally or by electronic mail, the time runs from the date of service and if by registered mail, from the postmarked date of the letter enclosing the document.

SECTION 37. Tennessee Code Annotated, Section 62-13-112(j)(2), is amended by deleting the subdivision and substituting:

(2) The commission shall send notification of the license suspension by regular or electronic mail if the licensee maintains an electronic mailing address on file with the commission:

(A) To the licensee at the last known business address or electronic mail business address and home address or electronic mail home address of the licensee as registered with the commission; and

(B) To the licensee's broker at the broker's address or electronic mail address as registered with the commission.

SECTION 38. Tennessee Code Annotated, Section 62-13-112(l)(2), is amended by deleting the subdivision and substituting:

(2) The commission shall send notification of the license revocation by regular mail or electronic mail if the licensee maintains an electronic mailing address on file with the commission:

(A) To the licensee at the last known business address or electronic mail business address and home address or electronic mail home address of the licensee as registered with the commission; and

(B) To the licensee's broker at the broker's address or electronic mail address as registered with the commission.

SECTION 39. Tennessee Code Annotated, Section 62-13-303(h), is amended by deleting "three (3) years" and substituting "four (4) years".

SECTION 40. Tennessee Code Annotated, Section 62-13-309(a)(1)(A), is amended by deleting ", located to conform with zoning laws and ordinances".

SECTION 41. Tennessee Code Annotated, Section 62-13-309(b)(1), is amended by deleting ", which shall clearly state that the broker is engaged in the real estate business".

SECTION 42. Tennessee Code Annotated, Section 62-13-309(b)(2), is amended by deleting the subdivision.

SECTION 43. Tennessee Code Annotated, Section 62-13-312(b)(12), is amended by deleting the subdivision and substituting:

(12) Being convicted in a court of competent jurisdiction of this or any other state or federal court of a felony or misdemeanor related to homicide, assault, battery, force, or any other act of violence against persons or property, forgery, embezzlement, obtaining money under false pretenses, bribery, larceny, extortion, conspiracy to defraud, any crime requiring registration on the Tennessee Sexual Offender and Violent Sexual Offender Registration, Verification and Tracking Act of 2004, compiled in title 40, chapter 39, part 2, or any crime or any similar offense or offenses, or pleading guilty or nolo contendere to any such offense or offenses;

SECTION 44. Tennessee Code Annotated, Section 62-13-312(f), is amended by inserting "or guilty plea" immediately following "conviction" wherever it appears.

SECTION 45. Tennessee Code Annotated, Section 62-13-313(b), is amended by deleting the subsection and substituting:

(b) All notices and answers required or authorized to be made or filed under this section may be served or filed personally, by electronic mail if the licensee maintains an electronic mailing address on file with the commission, or by first-class mail to the last known business address or electronic business mail address of the addressee. If served

personally or by electronic mail, the time runs from the date of service and if by registered mail, from the postmarked date of the letter enclosing the document.

SECTION 46. Tennessee Code Annotated, Section 62-13-317(b), is amended by adding "or electronically mailed" immediately following the word "mailed".

SECTION 47. Tennessee Code Annotated, Section 62-13-319(c), is amended by deleting "more than two (2) years" and substituting "more than one (1) year".

SECTION 48. Tennessee Code Annotated, Section 62-18-102(1), is amended by deleting the subdivision and substituting:

(1) "Board" means the state board of examiners for architects, engineers, and land surveyors created by § 62-2-201;

SECTION 49. Tennessee Code Annotated, Title 62, Chapter 18, Part 1, is amended by deleting sections 62-18-103, 62-18-104, 62-18-105, 62-18-107, and 62-18-108.

SECTION 50. Tennessee Code Annotated, Section 62-18-106, is amended by deleting the section and substituting:

(a) The board shall, in compliance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5, promulgate rules that incorporate and establish minimum acceptable standards of practice for licensed land surveyors.

(b) The board may establish continuing educational requirements and standards for land surveyors. Any rules promulgated to affect this subsection (b) must be promulgated in compliance with the Uniform Administrative Procedures Act.

SECTION 51. Tennessee Code Annotated, Section 62-18-112, is amended by deleting the section and substituting:

(a) In determining the qualifications of applicants for registration as land surveyors, the executive director of the board may assign the application to two (2) or more of the land surveying members to review individually. If two (2) reviewing members approve the application and full board review is not otherwise required by this subsection (a), then the application is approved. If any reviewing member requests full

board review, or if the executive director determines that the level of complexity of the application needs full board review, then the application must be reviewed at a board meeting and approval requires only the affirmative vote of a majority of the land surveying members. Applicants for registration as land surveyors must only be examined by land surveyor members of the board.

(b) If the board denies the issuance of a certificate to an applicant, then a refund of any part of the application fee must not be returned by the board to the applicant.

(c) For purposes of this section, the public member of the board appointed under the authority of § 62-2-201(b) is not a voting member of the board.

SECTION 52. Tennessee Code Annotated, Section 62-18-116(a)(1)(D), is amended by deleting "§ 62-18-106(c)" and substituting "§ 62-18-106(a)".

SECTION 53. Tennessee Code Annotated, Section 62-20-115(a)(2), is amended by deleting the subdivision and substituting:

(2) The board shall transmit any such complaint to the accused licensee. The board may transmit any such complaint by electronic mail or first-class mail.

SECTION 54. Tennessee Code Annotated, Title 62, Chapter 27, is amended by deleting the chapter.

SECTION 55. Tennessee Code Annotated, Section 62-76-203(a)(7), is amended by deleting the subdivision.

SECTION 56. Tennessee Code Annotated, Section 62-35-143(a), is amended by deleting the subsection and substituting:

(a)

(1) The detection services licensing program includes the commissioner's implementation of the requirements of this chapter; chapter 26 of this title; and the Alarm Contractors Licensing Act of 1991, compiled in chapter 32, part 3 of this title.

(2) All moneys collected pursuant to this chapter, chapter 26 of this title, and the Alarm Contractors Licensing Act of 1991 must be deposited in the state treasury in a separate account governed by § 56-1-310 for the administration of this chapter, chapter 26 of this title, and the Alarm Contractors Licensing Act of 1991.

SECTION 57. Tennessee Code Annotated, Section 62-35-143(c), is amended by deleting the subsection and substituting:

(c) If the commissioner establishes the committee pursuant to subsection (b), then the committee must include ten (10) members as follows:

- (1) Three (3) members representing the alarm industry;
- (2) Three (3) members representing the private investigation industry;
- (3) Three (3) members representing the private security industry; and
- (4) One (1) public member who is not eligible for membership under subdivisions (c)(1)-(3).

SECTION 58. Tennessee Code Annotated, Section 68-102-602(a)(2), is amended by deleting ". In the event that a deficiency is found during a safety inspection, any subsequent inspection that is required for the inspection of repairs that are made to address such deficiency shall be conducted by a deputy electrical inspector who is commissioned under § 68-102-143".

SECTION 59. Tennessee Code Annotated, Section 68-105-103(b)(7), is amended by deleting the subdivision.

SECTION 60. All moneys of boards, commissions, and regulatory funds eliminated by Sections 48 through 52 of this act must be transferred to the account for the state board of examiners for architects, engineers, and land surveyors created in Section 13 of this act.

SECTION 61. All moneys and regulatory funds eliminated by the deletion of title 62, chapter 27, remain in the account created by § 62-35-143, and must be used for the administration of the detection services licensing program.

SECTION 62. All members of boards created by §§ 62-2-201 and 62-18-103, excluding the public member of 62-18-103, shall continue to serve out their existing term on the state board for architects, engineers, and land surveyors created by Section 5 of this act. New members must be appointed, in accordance with § 62-2-203(a), immediately to fill any vacant seats. A public member must be appointed, in accordance with § 62-2-203(b), to the state board for architects, engineers, and land surveyors created by Section 5 of this act.

SECTION 63.

(a) For the purpose of promulgating rules, this act takes effect upon becoming a law, the public welfare requiring it.

(b) For all other purposes, this act takes effect July 1, 2026, the public welfare requiring it.